Return to:

MICHAEL R. MASTRO
510 Rainier Avenue South
Seattle, Washington 98144

DEED OF TRUST

(For Use in the State of Washington Only)

Grantor(s):	MARK X. PLOG and RHEA NELL PLOG, Husband and Wife
Beneficiary(ies):	MICHAEL R. MASTRO 12152
	PAUNENE
Legal Description:	SEC 36, TWP 24 N, RGE 7 E, RECORDS OF KING COUNTY, WA
	FILED BY PNWT
Assessor's Tax Parcel ID#:	362407-9104-09 PNW1 062530.4

THIS DEED OF TRUST, made this **28TH** day of **SEPTEMBER, 2007** between **MARK X. PLOG** and **RHEA NELL PLOG**, Husband and Wife, jointly and severely liable, GRANTOR, whose address is 29907 NE 18th Street, Sammamish, WA 98074, **PACIFIC NORTHWEST TITLE COMPANY**, a corporation, TRUSTEE, whose address is 215 Columbia Street, Seattle, WA 98104, and **MICHAEL R. MASTRO**, a married man as his sole and separate estate, BENEFICIARY, whose address is 510 Rainier Avenue South, Seattle, WA 98144.

WITNESSETH: Grantor hereby bargains, sells and conveys to Trustee in Trust, with power of sale, the following described real property in **KING** County, Washington:

SEE ATTACHED SCHEDULE "A" FOR THE LEGAL DESCRIPTIONS MADE A PART HEREOF BY REFERENCE HEREIN

which real property is not used principally for agricultural or farming purposes, together with all the tenements, hereditaments, and appurtenances now or hereafter thereunto belonging or in any wise appertaining and the rents, issues and profits thereof.

This deed is for the purpose of securing performance of each agreement of grantor herein contained, and payment of the sum of ($855,556.00) **EIGHT HUNDRED FIFTY-FIVE THOUSAND FIVE HUNDRED FIFTY-SIX DOLLARS** and **NO/CENTS** with interest, in accordance with the terms of a promissory note of even date herewith, payable to Beneficiary or order, and made by Grantor, and all renewals, modifications and extensions thereof, and also such further sums as may be advanced or loaned by Beneficiary to Grantor, or any of their successors or assigns, together with interest thereon at such rate as shall be agreed upon.

To protect the security of this Deed of Trust, Grantor covenants and agrees:

1. To keep the property in good condition and repair; to permit no waste thereof; to complete any building structure or improvement being built or about to be built thereon; to restore promptly any

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To protect the security of this Deed of Trust, Grantor covenants and agrees:

1. To keep the property in good condition and repair; to permit no waste thereof; to complete any building structure or improvement being built or about to be built thereon; to restore promptly any

building, structure or improvement thereon which may be damaged or destroyed; and to comply with all laws, ordinances, regulations, covenants, conditions and restrictions affecting the property;

2. To pay before delinquent all lawful taxes and assessments upon the property; to keep the property free and clear of all other charges, liens or encumbrances impairing the security of this Deed of Trust.
3. To keep all buildings now or hereafter erected on the property described herein continuously insured against loss by fire or other hazards in an amount not less than the total debt secured by this Deed of Trust. All policies shall be held by the Beneficiary, and be in such companies as the Beneficiary may approve and have loss payable first to the Beneficiary, as its interest may appear, and then to the Grantor. The amount collected under any insurance policy may be applied upon any indebtedness hereby secured in such order as the Beneficiary shall determine. Such application by the Beneficiary shall not cause discontinuance of any proceedings to foreclose this Deed of Trust. In the event of foreclosure, all rights of the Grantor in insurance policies then in force shall pass to the purchaser at the foreclosure sale.
4. To defend any action or proceeding purporting to affect the security hereof or the rights or powers of Beneficiary or Trustee, and to pay all costs and expenses, including cost of title search and attorney's fees in a reasonable amount, in any such action or proceeding, and in any suit brought by Beneficiary to foreclose this Deed of Trust.
5. To pay all costs, fees and expenses in connection with this Deed of Trust, including the expenses of the Trustee incurred in enforcing the obligation secured hereby and Trustee's and attorney's fees actually incurred, as provided by statute.
6. Should Grantor fail to pay when due any taxes, assessments, insurance premiums, liens, encumbrances or other charges against the property hereinabove described, Beneficiary may pay the same, and the amount so paid, with interest at the rate set forth in the note secured hereby, shall be added to and become a part of the debt secured in this Deed of Trust.

IT IS MUTUALLY AGREED THAT:

1. In the event any portion of the property is taken or damaged in an eminent domain proceeding, the entire amount of the award or such portion as may be necessary to fully satisfy the obligation secured hereby, shall be paid to Beneficiary to be applied to said obligation.
2. By accepting payment of any sum secured hereby after its due date, Beneficiary does not waiver its right to require prompt payment when due of all other sums so secured or to declare default for failure to so pay.
3. The Trustee shall reconvey all or any part of the property covered by this Deed of Trust to the person entitled thereto on written request of the Grantor and the Beneficiary, or upon satisfaction of the obligation secured and written request for reconveyance made by the Beneficiary of the person entitled thereto.
4. Upon default by Grantor in the payment of any indebtedness secured hereby or in the performance of any agreement contained herein, all sums secured hereby shall immediately become due and payable at the option of Beneficiary. In such event and upon written request of Beneficiary, Trustee shall sell the trust property, in accordance with the Deed of Trust Act of the State of Washington, at public auction to the highest bidder. Any person except Trustee may bid at Trustee's sale. Trustee shall apply the proceeds of the sale as follows: (1) to the expense of the sale, including a reasonable Trustee's fee and attorney's fee; (2) to the obligation secured by this Deed of Trust; (3) the surplus, if any, shall be distributed to the persons entitled thereto.
5. Trustee shall deliver to the purchaser at the sale its deed, without warranty, which shall convey to the purchaser the interest in the property which Grantor had or had the power to convey at the time of his execution of this Deed of Trust, and such as he may have acquired thereafter, Trustee's deed shall recite the facts showing that the sale was conducted in compliance with all the requirements of law and of this Deed of Trust, which recital shall be prima facie evidence of such compliance and conclusive evidence thereof in favor of bona fide purchaser and encumbrancers for value.
6. The power of sale conferred by this Deed of Trust and by the Deed of Trust Act of the State of Washington is not an exclusive remedy; Beneficiary may cause this Deed of Trust to be foreclosed as a mortgage.
7. In the event of the death, incapacity, disability, or resignation of Trustee, Beneficiary may appoint in writing a successor trustee , and upon the recording of such appointment in the mortgage records of the

county in which this Deed of Trust is recorded, the successor trustee shall be vested with all powers of the original trustee. The trustee is not obligated to notify any party hereto of pending sale under any other Deed of Trust or of any action or proceeding in which Grantor, Trustee or Beneficiary shall be a party unless such action or proceeding is brought by the Trustee.

8. This Deed of Trust applies to inures to the benefit of, and is binding not only on the parties hereto, but on their heirs, devisees, legatees, administrators, executors and assigns. The term Beneficiary shall mean the holder and owner of the note secured hereby, whether or not named as Beneficiary herein.

MARK X. PLOG, a married man jointly and severely liable

RHEA NELL PLOG, a married woman jointly and severely liable

STATE OF WASHINGTON
County of King

I hereby certify that I know or have satisfactory evidence that **MARK X. PLOG** and **RHEA NELL PLOG** are the persons who appeared before me, and said persons acknowledged that they signed this instrument and acknowledged it to be their free and voluntary act for the uses and purposes mentioned in this instrument.

DATED: 10/4/07

Camille M. DeWitt

Notary Public in and for the State of Washington,
Residing at Renton, Wa
My appointment expires 3-15-10

CAMILLE MARIE DEWITT
COMMISSION EXPIRES
NOTARY
PUBLIC
MARCH 15, 2010
STATE OF WASHINGTON

ADDENDUM "A"
TO
ALL INCLUSIVE DEED OF TRUST

This Addendum "A" sets forth additional terms and conditions of that certain Deed of Trust dated **SEPTEMBER 29, 2007** by and between **MARK X. PLOG** and **RHEA NELL PLOG**, Husband and Wife, jointly and severely liable, Grantor and **MICHAEL R. MASTRO**, a married man as his sole and separate estate,Beneficiary

This Deed of Trust is given in consideration of and as security for the payment of the Note by Grantor to Beneficiary, payable to the order to Beneficiary for the principal amount set forth above as the consideration herefore, together with interest and charges thereon, and any and all advances now or hereafter made by Beneficiary under the terms and conditions of the Note and Deed of Trust. This Deed of Trust shall secure all of the terms, conditions, agreements, stipulations, covenants, and provisions hereof and of all other security documents and instruments given by Grantor to Beneficiary to secure the indebtedness secured hereby. This Deed of Trust shall secure all costs of collecting any indebtedness under the Note including any and all costs and expenditures of a receiver in possession, and reasonable attorneys' fees.

Grantor and Beneficiary herein, the language of the Deed of Trust to the contrary notwithstanding, agree as follows:

1. Grantor agrees that he has accepted the property in the condition existing on the closing date. Grantor represents that upon closing, Grantor to Grantor's complete and sole satisfaction shall have made a complete and independent investigation of the property. Grantor further agrees that

Beneficiary shall not be liable or bound in any manner by and express or implied warranties, promises, statements, representations, or information pertaining to the property made or furnished by any real estate broker, agent employee, servant, or other person representing or purporting to represent Beneficiary.

2. This Deed of Trust is subject to and subordinate to a Deed of Trust recorded under Recording No. N/A, records of N/A County, Washington, the original balance of which was N/A and /100's DOLLARS ($ N/A). This Deed of Trust and the Note secured thereby are hereinafter referred to as "First Deed of Trust" and "First Note".

3. This is an All-Inclusive Deed of Trust, the balance of which includes the balance of the first Note in the amount of N/A, and /100's DOLLARS ($ N/A), representing an obligation N/A. Grantor agrees to perform and comply with all of the agreements, terms and conditions of the First Deed of Trust, including pre-payment penalties if any.

4. Further conditions of this Deed of Trust are as follows:

A. INSURANCE. The Grantor agrees, until the purchase price is fully paid, to keep the buildings now and hereafter placed on said real estate insured to an amount which is equal to the amount owing to the Beneficiary or underlying lender, whichever is greater, against loss or damage by both fire and windstorm in a company acceptable to the underlying lender and for the Beneficiary's benefit, as Beneficiary's interest may appear, and to pay all premiums therefore and to deliver all policies and renewals thereof to the Beneficiary. Furthermore, should the underlying Lender require coverage against losses other than fire and windstorm, Grantor hereby agrees to provide coverage against those losses in an amount to be determined by the underlying Lender.

B. PAYMENT OF TAXES, ASSESSMENTS, OTHER LIENS OR CHARGES. Grantor shall pay to the proper officers all taxes, assessments, general or special, including assessments, dues and charges for water of every kind, nature and description, which shall be levied or assessed on the Property exhibiting to Beneficiary upon its request receipts of proper officers evidencing such payments. In addition, Grantor shall pay, when due, all charges for water, water delivery, gas, electric power